

Cause of Action. The court would sustain the Demurrer to this Cause of Action, and deny leave to amend.

For the Third Cause of Action, the allegations – that Defendant did not thoroughly read the diagnostic report and did not provide the appropriate level of treatment – do not sufficiently state what care Defendant agreed to provide. The court further finds that, in all probability, amendment would be futile. There is no suggestion, based on the alleged facts, that anything more definitive with respect to an agreement on care exists. Thus, the court would deny leave to amend.

For the Fourth Cause of Action, the allegations that Defendant: failed to identify the second diagnosis of Large Cell Lymphoma, two times, in the Histopathology Report; failed to properly apologize to the Plaintiff; Attempted to shift the blame to Plaintiff in a card of sympathy; and made a casual comment about his ability to perform surgery, can, in no way, rise to the level of extreme and outrageous conduct. It is very unlikely that amendment could cure this defect. The court would deny leave to amend.

Finally, for the Fifth Cause of Action, even assuming that Defendant did actively conceal the diagnosis of Small Cell Lymphoma in the medical records, he had already given this diagnosis, verbally, to Plaintiff. Amendment cannot cure this defect. The court would deny leave to amend.

Disposition

Defendant's Demurrer is sustained to all Causes of Action except the First Cause of Action.

To the extent that Plaintiff is seeking a Cause of Action for Ordinary Negligence, the court sustains the Defendant's Demurrer to this as well.

The court denies leave to Plaintiff to amend the Complaint.

Plaintiff to file Amended Complaint within 10 court days of this Order.

Defendant to draw and file Order.

8. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
***HEARING ON MOTION IN RE: STRIKE COMPLAINT BY DEFT ON 9-29-25**
FILED BY: ATWATER, STEPHEN W
TENTATIVE RULING:

Background

Defendant filed, on 9/29/26, a Motion to strike portions of Plaintiff's First Amended Complaint.

The Plaintiff filed a Response.

Disposition

This Motion will be continued to 4/14/26, 9am.

This will serve as notice to the parties.

9. 9:00 AM CASE NUMBER: L25-06838
CASE NAME: CAPITAL ONE, N.A. VS. GLORIA QUESADA
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CLINTON ROONEY
FILED BY: QUESADA, GLORIA
TENTATIVE RULING:

Appearance required. The Court will elicit reason for Defense counsel's motion to withdrawal in camera. Counsel may appear by Zoom.

10. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER
*HEARING ON MOTION IN RE: TO TRANSFER VENUE AND JURISDICTION
FILED BY: PORTER, LAUREN
TENTATIVE RULING:

Background

Defendant has filed a Motion to transfer venue, on 11/12/25.

There is no proof that notice of the Motion was given to Plaintiff.

The Motion is unopposed.

Disposition

Motion will be **continued** to 4/14/26, 9 a.m. for Defendant to serve notice on Plaintiff.

11. 9:00 AM CASE NUMBER: L25-09216
CASE NAME: ADOLFO GONZALEZ VS. LANGLEY FEDERAL CREDIT UNION